BBA | OFFICE MANAGEMENT

Unit 4: Company Office Procedures and Meeting Management

Secretary | Directors, Chairman, Auditor | Meetings | Minutes

Unit 4 at a Glance

1 Company Secretary

Appointment, qualifications, functions and position in the company

2 Directors, Chairman, Auditor

Basic knowledge, roles and responsibilities

3 Meetings

Types, notice, agenda, quorum, voting, motions, resolutions

4 Minutes and Practice

Minutes writing, minutes book, hands-on meeting documentation

A

The Company Secretary

Appointment, qualifications, functions and position

Who is a Company Secretary?

A **Company Secretary (CS)** is a qualified professional who helps a company in **corporate administration, legal compliance, governance, documentation, and communication**.

A key officer who ensures the company follows the law

Under the Companies Act 2013, a Key Managerial Personnel (KMP)

Must be a member of the ICSI (Institute of Company Secretaries of India)

A Company Secretary is the link between the company's Board of Directors, management, shareholders, government authorities, and other stakeholders.

LINK

A Company Secretary (CS) acts as the central communication channel, compliance officer, and governance advisor connecting the internal leadership of an organization with its external and internal stakeholders

- **Conducting Meetings** – Organises Board and general meetings and prepares notice, agenda and minutes.
- **Maintaining Records** – Maintains minutes books, statutory registers and important company records.
- **Legal Compliance** – Ensures compliance with the Companies Act, rules and regulations.
- **Preparing Documents** – Prepares notices, agendas, resolutions, minutes and other official documents.
- **Communication & Coordination** – Acts as a link between the Board, management, shareholders and authorities.
- **Corporate Governance** – Helps the company follow proper governance procedures and practices.
- **Advisory Function** – Advises the Board on company law, meetings and compliance matters.
- **Follow-up of Decisions** – Communicates decisions and monitors important actions and deadlines.

Appointment of a Secretary

- Whole-time Secretary is compulsory for listed companies and public companies with paid-up capital of Rs 10 crore or more
- Appointed by a resolution of the Board of Directors
- Terms, salary and duties are decided by the Board
- Smaller companies may hire a practising Company Secretary or a professional

Example

ABC Textiles Ltd. (public, paid-up capital Rs 25 crore) must appoint a full-time Company Secretary. A small private firm with Rs 50 lakh capital may take help of a practising CS only when required.

Qualifications of a Secretary

1 Academic

Graduate degree; strong base in commerce, law and management

2 Professional

Membership of ICSI (ACS/FCS) after the CS course and practical training

3 Personal Skills

Integrity, communication, tact, confidentiality, computer and drafting skills

Functions of a Secretary

1 Statutory Duties

Maintain registers, file returns and forms with ROC, ensure compliance

2 Administrative Duties

Handle correspondence, records, share transfers and office routine

3 Advisory Duties

Advise Board on laws, SEBI rules, governance and risk

4 Meeting Duties

Call meetings, prepare agenda, record minutes, follow up decisions

Position in Office and Company

- Officer of the company: answerable to the Board
- Agent: can bind the company only within authority given
- Adviser: guides directors on legal and procedural matters
- Link: connects management, members, government and public

Position in Hierarchy

Shareholders > Board of Directors > Managing Director / CEO > Company Secretary > Office staff.

The Secretary reports to the Board but works daily with every department.

Example: Secretary at Work

- Sharma Pharma Ltd. wants to hold its Annual General Meeting
- Secretary checks dates, drafts notice and agenda, gets Board approval
- Sends notice to all members 21 clear days before the AGM
- After the AGM: records minutes, files returns, informs staff of decisions

Learning Point

Every step of a meeting depends on the Secretary. If the notice is defective or late, the whole meeting and its decisions can be challenged in court.

B

Directors, Chairman and Auditor

Basic knowledge, roles and responsibilities

Directors

- A **Director** is a person appointed to the **Board of Directors** of a company to participate in its management, decision-making and supervision.
- Persons appointed to direct and manage the company affairs
- Minimum: public company 3, private company 2, One Person Company 1; maximum 15
- At least one director must have stayed in India for 182 days or more
- Elected by shareholders; Board acts collectively

Example

Ramesh is appointed Director at the AGM of Kiran Foods Ltd. He now takes part in Board meetings, votes on decisions and signs the annual accounts along with other directors.

Responsibilities of Directors

1 Act in Good Faith

Work for the benefit of the company, members and employees

2 Due Care and Skill

Take informed decisions with reasonable diligence

3 Avoid Conflict

Do not misuse position or make secret personal gains

4 Attend and Disclose

Attend Board meetings; disclose interest in contracts

More Responsibilities of Directors

- **Strategic Decision-Making** – Take important decisions for the company's growth and development.
- **Supervision & Control** – Monitor the company's management and business activities.
- **Legal Compliance** – Ensure that the company follows applicable laws and regulations.
- **Financial Responsibility** – Oversee financial matters and protect company assets.
- **Protection of Stakeholders** – Consider the interests of shareholders, employees and other stakeholders.
- **Corporate Governance** – Maintain transparency, accountability and proper governance.

Chairman

- A **Chairman** is the person who **presides over the meetings of the Board of Directors and guides the functioning of the Board**.
- Ensures meeting starts on time and follows the agenda
- Maintains order, gives every member a fair chance to speak
- Has a casting vote in case of a tie (if Articles allow); signs the minutes

Example

Votes on a dividend proposal are 4 for and 4 against. The Chairman uses his casting vote in favour, and the resolution is passed.

Main Responsibilities of Chairman

- **Presides over Board Meetings** – Conducts and manages meetings.
- **Ensures Order & Participation** – Gives members an opportunity to express their views.
- **Guides the Board** – Helps the Board discuss and take important decisions.
- **Coordinates with Management** – Acts as a link between the Board and senior management.
- **Ensures Good Governance** – Supports proper procedures, transparency and accountability.

Auditor

- An **Auditor** is a qualified professional who **examines and verifies the financial records and financial statements of a company** to determine whether they present a true and fair view.
- An independent professional (Chartered Accountant) who checks the accounts
- Appointed by shareholders at the AGM, normally for 5 years
- Reports whether accounts show a true and fair view
- Has right of access to books, vouchers and information

Example

The auditor of Kiran Foods Ltd. finds that stock is overvalued. She mentions it in her report, and members read it at the AGM before approving the accounts.

Main Responsibilities

- **Examines Accounts** – Checks books of accounts and financial records.
- **Verifies Transactions** – Checks whether transactions are properly recorded and supported.
- **Checks Compliance** – Examines compliance with applicable laws and accounting requirements.
- **Detects Errors & Irregularities** – Identifies material errors, discrepancies or irregularities.
- **Reports Findings** – Gives an **audit report** to the members/shareholders of the company.

Director vs Chairman vs Auditor

Point	Director	Chairman	Auditor
Role	Manages the company	Leads meetings	Checks the accounts
Appointed by	Shareholders	Board / members	Shareholders at AGM
Reports to	Members	Board	Members
Independent?	Not necessarily	Not necessarily	Must be independent

C

Meetings

Types, notice, agenda, quorum, voting, resolutions

Meaning and Importance of Meetings

- A meeting is a gathering of two or more persons for a common purpose
- Helps in decision making, coordination and communication
- Provides a legal record of decisions through minutes
- Company law makes certain meetings compulsory

Example

A Board meeting decides to open a new branch. The decision, the amount approved and the persons responsible are all recorded, so everyone knows what to do next.

Types of Company Meetings

Meeting	Who attends	Key rule
Board Meeting	Directors	At least 4 a year; gap not above 120 days
Annual General Meeting (AGM)	All members	Held yearly within 6 months of year end
Extraordinary General Meeting (EGM)	All members	Called for urgent business
Class Meeting	One class of shareholders	To change rights of that class
Committee Meeting	Selected directors /committee members	Discuss specific matters such as audit, nomination or CSR

Secretary: Before, During, After

1 Before the Meeting

Fix date and venue, send notice and agenda, prepare papers and attendance sheet

2 During the Meeting

Check quorum, assist Chairman, take notes, guide on rules

3 After the Meeting

Draft minutes, get Chairman signature, circulate decisions, follow up action

Notice of Meeting

- Written intimation of date, time, place and business
- Board meeting: at least 7 days; general meeting: 21 clear days
- Sent to every director or member, auditor included for general meetings
- Defective notice can make the meeting invalid

Sample Notice

NOTICE is hereby given that the 10th Annual General Meeting of Kiran Foods Ltd. will be held on 15 Sept 2026 at 11:00 AM at the Registered Office, Kanpur, to transact the business in the agenda.

By order of the Board
Company Secretary

Agenda

- List of items of business to be taken up, in order
- Prepared by the Secretary with the Chairman, and sent with the notice
- Includes routine items, special items and "any other business"
- Helps members prepare and keeps discussion focused

Sample Agenda

1. Confirm minutes of last meeting
2. Review of sales report
3. Approval of new branch budget
4. Appointment of an auditor
5. Any other business with Chairman's permission
6. Vote of thanks

Quorum =

Minimum attendance required to legally conduct a meeting.

Meeting	Minimum persons needed
Board meeting	1/3 of total directors or 2 directors, whichever is higher
General meeting: public company	5 members (up to 1000 members), 15 (1000-5000), 30 (above 5000)
General meeting: private company	2 members personally present
Example	A Board has 9 directors: 1/3 is 3, so quorum is 3 directors

Voting

1 Show of Hands

Members vote by raising their hands.

2 Poll

Votes are counted according to the voting rights of members.

3 E-voting / Postal Ballot

Members cast votes electronically.

4 Proxy

Members vote without being physically present at the meeting.

Motions and Resolutions

Motion

- A **motion** is a **formal proposal made by a member/director during a meeting** for discussion and decision.
- **Example:** “I propose that the company open a new branch in Lucknow.”

Resolution

- A **resolution** is a **formal decision of the meeting** made after a motion is discussed and approved through the required voting process.

Types of Resolutions

1. **Ordinary Resolution** – Passed by a **simple majority** of votes.
2. **Special Resolution** – Requires **at least 75% of the votes** in favour.

Motions and Resolutions

Term	Meaning
Motion	A **proposal** put before the meeting
Ordinary Resolution	Passed by simple majority
Special Resolution	Passed by 3/4 majority
Board Resolution	Passed by directors at a Board meeting
Circulation Resolution	Passed by papers sent to directors

D

Minutes and Practical Training

Minutes writing, minutes book and documentation

Minutes: Meaning and Types

1 Meaning

Official written record of what happened and what was decided at a meeting

2 Minutes of Resolution

Records only decisions and resolutions passed

3 Minutes of Narration

Records decisions plus a summary of discussion

Contents and Minutes Book

- Name of company, type of meeting, date, time and place
- Names of directors or members present, absent, and in attendance
- Resolutions passed with proposer and seconder; votes where needed
- Entered in the minutes book within 30 days, pages numbered, signed by the Chairman

Minutes Book

A bound or numbered register kept at the registered office. Rules: no blank gaps, no erasing, corrections by signed note, and it is preserved permanently as legal evidence.

Sample Minutes

- Kiran Foods Ltd.: Board Meeting held on 5 Sept 2026, 11:00 AM
- Present: Mr. Rao (Chairman), Mr. Singh, Ms. Gupta. Quorum was present
- Resolved that a new branch be opened at Lucknow with a budget of Rs 20 lakh
- Proposed by Ms. Gupta, seconded by Mr. Singh; passed unanimously

Closing Lines

The meeting ended at 12:30 PM with a vote of thanks.

Signed: Mr. Rao, Chairman
Date: 12 Sept 2026

Meeting Documentation Flow

1

Notice

Draft and send with date, time, place

2

Agenda

List the business in order

3

Attendance

Sign-in sheet and quorum check

4

Minutes

Record decisions during meeting

5

Follow Up

Sign, file and circulate action points

Office procedure tip: keep one file per meeting with notice, agenda, attendance sheet, papers and signed minutes.

Practical Training Activity

1 Mock Board Meeting

Class forms a Board: choose Chairman, Secretary and directors

2 Draft the Papers

Write notice, agenda and attendance sheet for the mock meeting

3 Write the Minutes

Record a resolution and have it signed by the Chairman

Key Takeaways

- Secretary is the legal and administrative backbone of the company
- Directors manage, the Chairman leads, the Auditor checks
- Valid meetings need proper notice, agenda and quorum
- Minutes are the legal proof of every decision

Remember

Notice > Agenda > Quorum > Voting > Resolution > Minutes

Review Questions

- Explain the qualifications and functions of a Company Secretary
- Distinguish between a Director, a Chairman and an Auditor
- What are the duties of a Secretary before, during and after a meeting?
- Draft a notice, agenda and minutes for a Board meeting

Short Notes

Quorum, Proxy, Poll, Special Resolution, Minutes Book, Casting Vote

Thank You

Questions and discussion